

10. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

11. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
*HEARING ON MOTION IN RE: STRIKE
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

12. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: Tyisha Paulk
***TENTATIVE RULING**

DENIED. Defendant was advised by Minute Order issued by this Court on 11/14/25 that the same Motion to Set Aside Default presently before the Court required proof of service pursuant to CCP 1010 and CRC 3.111. The matter was continued to this present date to allow her to effect service on Plaintiff. She has once again failed to do so.

13. 9:00 AM CASE NUMBER: MSC19-02596
CASE NAME: DEBRA WALKER VS. TROY MARTINEZ
*HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL
FILED BY: Troy Martinez, et al
TENTATIVE RULING:

The motion to dismiss, filed by defendants Troy Martinez and Normandie & Slauson, LLC is **granted**. Defendants shall prepare and circulate a proposed form of judgment, separate from any order on this motion, for submission to the Court.

Plaintiff Debra Walker filed this suit against defendants on December 11, 2019. The Court docket reflects multiple occasions on which counsel for both sides failed to appear or other delays occurred. In June of 2024 at a settlement conference with Judge Melissa O'Connell, parties represented that they had reached a settlement. The court minutes show no terms to which parties allegedly agreed. Plaintiff's attorney then reduced the agreement to a writing, which plaintiff signed in September of 2024. Defendants delayed in returning an executed copy. When defendants finally